

TENTATIVE RULING:

After review of the papers, the Court **grants** the Application. The Court will sign the proposed order provided.

7. 9:00 AM CASE NUMBER: C24-01854
CASE NAME: REGINALD CANNON VS. MELISSA KATZ
APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE RE THOMAS J. KIRKHAM
FILED BY: HCR MANOR CARE SERVICES, LLC

TENTATIVE RULING:

After review of the papers, the Court **grants** the Application. The Court will sign the proposed order provided.

8. 9:00 AM CASE NUMBER: C25-00245
CASE NAME: SORN MOEUN VS. HIEU BALL, M.D.
GOOD FAITH SETTLEMENT ON BEHALF OF DEFENDANT HIEU T. BALL, MD
FILED BY: BALL, M.D., HIEU T.

TENTATIVE RULING:

Defendant Hieu Ball's motion for a good faith settlement determination is **denied without prejudice**. Defendant may renew his motion with additional information on past and future medical expenses and other information addressing the Court's concerns.

Plaintiffs sued for medical malpractice, alleging that Sorn was injured during spinal surgery. Montha (Sorn's wife) brought a loss of consortium claim. Dr. Ball performed the spinal surgery at San Ramon Regional Medical Center in October 2023.

Ball filed this motion for a good faith settlement determination. Defendant San Ramon Regional Medical Center opposes the motion. San Ramon argues that Plaintiff's potential recovery is \$17 million and that San Ramon could potentially be liable for Ball's actions (although San Ramon disputes this theory).

The party claiming that a settlement is not in good faith under Code of Civil Procedure §877.6 has the burden of proof on that issue. (*Tech-Bilt, Inc. v. Woodward-Cycle & Associates* (1985) 38 Cal.3d 488, 499 ("Tech-Bilt"); *City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261, 1264.) The party asserting that the settlement was not made in good faith must demonstrate that the settlement is "so far out of the ballpark in relation to [the *Tech-Bilt*] factors as to be inconsistent with the equitable objectives of the statute." (*Tech-Bilt, supra*, 38 Cal.3d at 499-500.) However, in order for the Court to make a factual determination that a settlement was made in good faith, the settling party must present sufficient admissible evidence that will allow the Court to evaluate the settlement in terms of the factors contemplated by *Tech-Bilt*. (*City of Grand Terrace, supra*, 192 Cal.App.3d at 1263.)

The criteria for the determination of a good faith settlement were originally set out by the

California Supreme Court in *Tech-Bilt*. *Tech-Bilt* identifies six nonexclusive factors for making a determination of good faith settlement:

- (1) a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability;
- (2) the amount paid in settlement;
- (3) the allocation of settlement proceeds among plaintiffs;
- (4) the recognition that a settlor should pay less in settlement than he would if he were found liable after a trial;
- (5) the financial conditions and insurance limits of settling defendants; and,
- (6) the existence of fraud, collusion, or tortious conduct aimed to injure the interests of nonsettling defendants.

(*Tech-Bilt*, *supra*, 38 Cal.3d at p. 499.)

Ultimately, for the Court to deny the motion, the "settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant's liability to be." (*Tech-Bilt*, *supra*, at p. 499.) Trial courts have "broad discretion in determining whether a settlement was entered in good faith and within the *Tech-Bilt* ballpark, and in allocating potential liability and exposure between or among joint tortfeasors." (*Norco Delivery Service, Inc. v. Owens-Corning Fiberglass, Inc.* (1998) 64 Cal.App.4th 955, 962.)

As to the first factor, there is some information on a rough approximation of plaintiff's likely recovery. In Plaintiff's statement of damages, he sought \$20 million in pain, suffering and emotional distress. (Gray dec. ex. B.). However, noneconomic damages may be limited by MICRA to \$470,000. (Civil Code 3333.2(b).)

Plaintiff's statement of damages also included \$1 million in lost earnings and \$5 million in future lost earnings. (Gray dec. ex. B.). However, Plaintiff's interrogatory responses showed a claim for \$1.1 million for lost wages (past and future). (Gray dec. C: Plaintiff's Interrogatory Responses 8.4, 8.7 and 8.8.) This estimate is based upon an assumption that Plaintiff would have worked until 75, which is perhaps optimistic.

Finally, Plaintiff's statement of damages claimed \$1 million in past medical expenses and \$10 million in future medical expenses. (Gray dec. ex. B.) Plaintiff's claimed injuries include spinal cord injury, quadriplegia, respiratory injury and emotional injury. (Gray dec. C: Plaintiff's Interrogatory Responses 6.3.) Plaintiff's responses provided some information on his medical treatment and future treatment, but details on many of the expenses were missing.

Given the significant injuries listed, including quadriplegia, the future medical expenses may be significant. Therefore, the Court estimates past medical at \$1 million and future medical at \$5 million.

Overall, Plaintiff's potential recovery is approximately \$7.5 million.

Here, Ball was Plaintiff's surgeon and if found liable, could be responsible for a significant portion of Plaintiff's damages. On the other hand, Ball has provided a declaration from the medical expert stating that Ball acted within the standard of care. (Spoonamore dec.)

As to the second factor, Ball's counsel provided a declaration stating that Ball settled with Plaintiffs for \$900,000. (Picchi dec. ¶7.)

As to the third factor, the Court does not have information on how the settlement would be split between Plaintiffs who are husband and wife, but that information is not likely to change the Court's analysis here.

As to the fourth factor, the Court is aware that a settlor should pay less in settlement than he would if he were found liable after a trial.

As to the fifth factor, Ball has a \$1 million insurance policy. (Gray dec. ex. E: Response 4.1.) No information has been provided on Ball's financial condition, however, the Court notes that there is no showing that Ball has stopped working or is insolvent. Since Ball did not settle for policy limits and has not shown his financial condition, the Court assumes that Ball had the ability to pay more.

As to the sixth factor, there is no evidence of fraud or collusion.

Having considered all the factors, the Court finds that the settlement is not within the ballpark. There are open questions about the amount of past and future medical Plaintiff will require. Ball's settlement with Plaintiff potentially covers Plaintiff's lost wages and arguably his pain and suffering, but it does not cover past or future medical bills. Given the serious nature of Plaintiff's injury, his medical bills might be significant. While Ball has provided an expert stating that he acted within the standard of care (and thus would not be liable), it is also likely that Plaintiff's have an expert to state otherwise, which means the chance of Ball being found liable at trial is a real possibility. Overall, the Court finds that Ball's settlement is outside the ballpark in this case.

9. 9:00 AM CASE NUMBER: C25-01475
CASE NAME: AUDREY WELSCH VS. HAYDEN FLOREZ
BE RELIEVED AS COUNSEL FOR AUDREY WELSCH
FILED BY:
TENTATIVE RULING:

Parties to appear. Counsel has not provided any information as to the reasons for this Motion. The